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<tr><td>DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO
305 W. Colorado Avenue, P.O. Box 919
Telluride, Colorado 81435
(970) 728-3891</td><td rowspan="2">Court Use Only</td></tr>
<tr><td>PLAINTIFFS: James F. Lucarelli; Virginia F. Lucarelli; Erik R. Aura; Frances M. Aura; Angela I. Farrar; James W. Farrar; Morgan and Sarah Smith Family Trust of 2000, as amended; Morgan C. Smith; Lisa Henson Revocable Trust; Nicholas G. Farkouh; David W. Lavender; Karen C. Lavender; Charles Price; and Jesse Price,
v.

DEFENDANTS: The Board of County Commissioners of San Miguel County, Colorado; Michael Wyszynski, in his official capacity as San Miguel County Clerk; the Town of Telluride; and Tiffany Kavanaugh, in her official capacity as Clerk of the Town of Telluride.</td></tr>
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Division: 2</td></tr>
<tr><td colspan="2">ANSWER BRIEF IN RESPONSE TO PLAINTIFFS' CLAIM ARISING UNDER C.R.C.P. 106(a)(4)</td></tr>
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Defendants, Board of County Commissioners of San Miguel County, Colorado and Michael Wyszynski, in his official capacity as San Miguel County Clerk (hereinafter collectively referred to as "County") hereby submits its Answer Brief Pursuant to C.R.C.P. 106(a)(4).

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I. STATEMENT OF THE ISSUES PRESENTED FOR REVIEW

Whether the San Miguel County Board of County Commissioners ("Board") abused its discretion by misapplying the law when it upheld the Written Interpretation dated September 20, 2023 ("Written Interpretation") of the County Planning Director which concluded the plain language of the 1991 PUD Plan did not include the Sheep Ranch as part of the Aldasoro PUD, but otherwise subjected owners of parcels located within the Sheep Ranch to a real estate transfer assessment ("RETA").

II. SUMMARY OF ARGUMENT

This Rule 106 action was brought by Plaintiffs to challenge the County's decision to uphold the Planning Director's Written Interpretation. The Planning Director's Written Interpretation concludes that the terms of the 1991 PUD Plan explicitly exclude the Sheep Ranch from the Aldasoro PUD and the provision for collection of RETA is authorized by the express terms of the 1991 PUD Plan, not by the County's Land Use Code ("LUC").

The only competent evidence in the record is the terms of the 1991 PUD Plan, which are unambiguous and therefore preclude a determination of the parties' rights and obligations beyond the four corners of the Plan. Yet even if relevant, an examination of the extrinsic evidence further supports the plain meaning of the terms to the 1991 PUD Plan. In light of the applicable provisions of the LUC and PUD Act, the terms of the 1991 PUD Plan provide additional corroboration that the Planning Director's Written Interpretation came to well-reasoned and accurate conclusions.

III. STATEMENT OF FACTS

1. Albert J. Aldasoro and Mary Louise Leonard, by and through Aldasoro Brothers and Aldasoro Ltd. ("Aldasoro"), owned approximately 4400 acres located in the Deep Creek Mesa in San Miguel County, Colorado. R., Ex. F at 363. The entirety of the land was granted Planned Unit Development Reserve status by the County in 1982. R., Ex. F at 363, 402.

2. In the PUD application dated September 7, 1990, Aldasoro planned to rezone only 1550 of the 4400 acres to a planned unit development, which was referred to as the Aldasoro Ranch throughout the application. R., Ex. F at 362-63. The balance of Aldasoro's property was to remain zoned Agricultural and be subject to the Telluride Regional Area Master Plan adopted July 12, 1989. R., Ex. F at 364.

3. On November 5, 1990, Aldasoro submitted the "Final Development Plan Approval for the Aldasoro Ranch Planned Unit Development" to the County ("1990 Development Plan"). R., Ex. D at 223. The 1990 Development Plan explicitly applied for planned unit development approval for only the real property described therein as Exhibit DP-1, which was referred throughout the 1990 Development Plan as the P.U.D. *Id*. The Sheep Ranch and Airport Park were to be rezoned to Forestry, Agricultural and Open Zone District ("Forestry/Ag"). *Id*. Pursuant to the 1990 Development Plan, the Sheep Ranch was to remain "physically and logically separated from the P.U.D." and the planned unit development process was to apply only to the P.U.D. identified in Exhibit DP-1. R., Ex. D at 248. The 1990 Development Plan was later amended to include additional terms applicable to the Sheep Ranch and Airport Park. R., Ex. D at 265.

4. The County approved the "Preliminary Development Plan Approval for the Aldasoro Ranch Planned Unit Development" (hereinafter referred to as the "1991 PUD Plan" or simply "Plan") by Resolution 1991-06 dated February 7, 1991. R., Ex. A at 24. Contrary to the reference in the title that the 1991 PUD Plan was a "preliminary" plan, the 1991 PUD Plan was the final iteration that was approved by the County.

5. The 1991 PUD Plan was signed and notarized by Albert Aldasoro as President of the Aldasoro Ltd. on February 1, 1991. R., Ex. A at 62.

6. The 1991 PUD Plan not only provides for provisions of a planned unit development referred to in the Plan as the "P.U.D." (hereinafter referred to as "Aldasoro PUD"), but also deals with several other issues. R., Ex. A. at 26. That is, the 1991 PUD Plan rezones Airport Park and the Sheep Ranch. R., Ex. A at 26-27.

7. The 1991 PUD Plan states that the Aldasoro PUD, Airport Park, and the Sheep Ranch were "previously zoned as a Planned Unit Development-Reserve District pursuant to the Land Use Code." R., Ex. A at 26. At the properly noticed public hearing on February 7, 1991, the Aldasoro PUD was rezoned to "Low Density Zone District," the Airport Park was rezoned to "Low Intensity Industrial Zone District," and, finally, the Sheep Ranch was rezoned to "Forestry, Agricultural and Open Zone District" contemporaneously to the County's approval of Aldasoro PUD in the 1991 PUD Plan. R., Ex. A. at 27.

8. Throughout the 1991 PUD Plan, the Sheep Ranch and Aldasoro PUD are described separately. Notably, the 1991 PUD Plan explicitly states that the Sheep Ranch is "physically and logically separated from the P.U.D." R., Ex. A. at 55. The Plan defines the "P.U.D." as that land which is described in Exhibit DP-1 attached to the 1991 PUD Plan otherwise referred to as the Aldasoro PUD in this Answer Brief. R., Ex. A. at 26. Sheep Ranch,

however, is separately defined as the land described in Exhibit DP-2 attached to the 1991 PUD Plan. *Id*.

9. The Real Estate Transfer Assessment ("RETA") is addressed in Section 4 of the 1991 PUD Plan. R., Ex. A. at 31-34. The 1991 PUD Plan states, "Aldasoro's participation in the Transit Entity or the County Program in the manner set forth herein shall constitute full and complete satisfaction of its obligation to mitigate transportation impacts… created by the P.U.D. and the Sheep Ranch." R., Ex. A. at 33. The 1991 PUD Plan goes on to explicitly define when and how the RETA applies to the Aldasoro PUD and the Sheep Ranch:

> Based upon the Transportation Study the County and Aldasoro acknowledge and agree that the transportation impacts created by the P.U.D. and the Sheep Ranch will be very limited and, therefore, the extent of the contribution by Aldasoro to either the Transit Entity or the County Program should be established on a corresponding and equitable and pro-rata basis. Therefore, Aldasoro shall contribute (i) ¾ of 1% of the real estate transfer assessment ("RETA Percentage") collected in the P.U.D. and (ii) a ¾ of the 1% real estate transfer assessment on all transfers of property in the Sheep Ranch that involve less than or equal to one hundred (100) acres. The format of the real estate transfer assessment imposed in the Sheep Ranch shall be substantially similar to the format utilized in the P.U.D., however, the maximum percentage of that includes the 3.4 of the 1% may vary.

R., Ex. A at 33.

10. On August 23, 2023, Plaintiffs Morgan Smith and Lisa Henson submitted a request ("Request") for a formal written interpretation pursuant to Section 1-1004 of the San Miguel County Land Use Code ("LUC").

11. Mr. Smith owns Diamond Ranch Subdivision Lot 1 and Ms. Henson owns Diamond Ranch Subdivision Lot 2, which are parcels located within the Sheep Ranch included in the 1991 PUD Plan. R., Ex. A at 7.

12. The Request submitted two questions to the County: 1) whether "the land referred to as the "Sheep Ranch" in the 1991 PUD Plan … that includes Diamond Ranch Lots 1 & 2, is

part of a unified plan of development under C.R.S. § 24-67-101 *et seq*." and 2) whether Mr. Smith and Ms. Henson are required to pay the RETA in light of the LUC Section 5-2001, which subjects developers of certain subdivisions to specific requirements regarding transportation. R., Ex. A at 9, 11.

13. Mr. Smith and Ms. Henson were ultimately concerned with the collection of RETA as they did not believe there was a legal basis for collection of the RETA. R., Ex. A at 7-9. Their Request did not raise an objection to any of other requirements of the 1991 PUD Plan.

14. In response, the County Planning Director, Kaye Simonson, wrote a Written Interpretation on September 20, 2023 ("Written Interpretation"). In regard to Mr. Smith and Ms. Henson's first question, she concluded the Sheep Ranch, while subject to certain provisions set forth in the 1991 PUD Plan, is not part of the Aldasoro PUD. She accurately reasoned as follows:

> The area that constitutes the Aldasoro Ranch PUD is based on the legal description contained in Exhibit DP-1 of the PUD Approval, and is as shown on the plats that were subsequently filed, specifically Aldasoro Ranch Filings 1, 2, and 3. The Sheep Ranch area is not included in any of those filings or in the legal description. Throughout the PUD Approval, the Aldasoro PUD and Sheep Ranch are separately described; this includes Sections 1, Introduction; 4, Transportation; 11, Wildlife; and 24, Allowed Uses. Notably, Section 24, Allowed Uses, states in part, "(T)he Sheep Ranch is physically and logically separated from the P.U.D."

R., Ex. A at 11.

15. Concerning the application of the RETA fee, Ms. Simonson concluded that parcels within the Sheep Ranch are subject to the RETA pursuant to Section 4.1.1(ii) of the 1991 PUD Plan, which is quoted above. *See* supra paragraph 9. R., Ex. A at 11. Ms. Simonson refers to the LUC Section 5-2001 and notes that Diamond Ranch is not a subdivision within the meaning of Section 5-2001 because the lots are 35 acres or greater in size. *Id*. She explains that the 1991 PUD Plan was negotiated by the County and Aldasoro and ultimately the "specific

restrictions on the Sheep Ranch" set forth in the 1991 PUD Plan "*override* the Land Use Code." (emphasis added). R., Ex. A at 12.

16. In Resolution 2023-45, approved and adopted on November 15, 2023, the Board upheld the Planning Director's Written Interpretation and made further findings that the 1991 PUD Plan was "clear and unambiguous" regarding the properties that are part of the Sheep Ranch and that "section 4.1.1 of the same specifically expressed the clear intention of Aldasoro Ltd. to subject the Sheep Ranch properties to the RETA." R., Ex. F at 426.

IV. <u>ARGUMENT</u>

A. Standard of Review

Judicial review commenced under C.R.C.P. 106(a)(4)(I) is "limited to a determination of whether the body or officer has exceeded its jurisdiction or abused its discretion based on the evidence in the record before the defendant body or officer." A government body abuses its discretion if its decision is unsupported by any competent evidence in the record or if it misconstrued or misapplied applicable law. *Colo. Health Consultants v. City and Cnty. of Denver through Dept of Excise*, 429 P.3d 115, 121 (Colo. App. 2012).

The "no competent evidence" standard means that the government body's decision is "so devoid of evidentiary support that it can only be explained as an arbitrary and capricious exercise of authority." *Id*. A government body's decision "is not arbitrary or an abuse of discretion when the reasonableness of the agency's action is open to a fair difference of opinion, or when there is room for more than one opinion." *Khelik v. City and Cnty. of Denver*, 411 P.3d 1020, 1023 (Colo. App. 2016).

B. The County did not abuse its discretion when it upheld the Planning Director's Written Interpretation.

i. The Planning Director accurately interpreted the explicit terms of the 1991 PUD Plan when finding that the Sheep Ranch was excluded from the planned unit development.

First and foremost, the Planning Director was neither tasked with determining the legality of the 1991 PUD Plan, nor was she required to consider matters beyond the express terms of the binding agreement. The County's decision to uphold the Written Determination rested on the unambiguous language of the 1991 PUD Plan and is therefore supported by competent evidence in the record.

Upon review of a government body's final determination, "the interpretation of unambiguous contractual language is a question of law to be resolved by the court." *Fey Concert Co. v. City and Cnty. of Denver*, 940 P.2d 972, 975 (Colo. App. 1996) *rev'd*, 960 P.2d 657 (Colo. 1998). When the instrument's language is clear and unambiguous, the terms "must be given effect in arriving at the parties' intent." *Cache Nat. Bank v. Lusher*, 882 P.2d 952, 957 (Colo. 1994) (en banc). The terms of the instrument are to be "accorded their plain and ordinary meaning." *Id*. Undefined terms are unambiguous if reasonably understood by considering their context. *Pub. Serv. Co. of Colo. v. Wallis and Co.'s*, 986 P.2d 924, 933 (Colo. 1999) (en banc).

Extrinsic evidence may be considered when determining the intent of the parties to a contract, but is only permissible when the terms of an agreement are ambiguous. *Ad Two, Inc. v. City and Cnty. of Denver ex re. Manager of Aviation*, 9 P.3d 373, 376 (Colo. 2000) (en banc). Courts consider a term ambiguous "when they are susceptible to more than one reasonable interpretation," but in the absence of ambiguity, courts "will not look beyond the four corners of the agreement to determine the meaning intended by the parties." *Id*. Ultimately, the mere existence of a parties' differing opinions as to the interpretation of a contract does not, by itself, create such ambiguity. *Id*.

The 1991 PUD Plan is subject to only one reasonable interpretation relating to the issues presented – the Sheep Ranch is expressly excluded from a planned unit development in the 1991 PUD Plan. For instance, the Aldasoro PUD is referred to simply as "the P.U.D." throughout the Plan, but PUD is never used to describe the Sheep Ranch. R., Ex. A at 26. The 1991 PUD Plan authorizes a planned unit development only for the property described in Exhibit DP-1, the Aldasoro PUD. *Id*. Under Section 24: Allowed Uses, the 1991 PUD Plan applies the "planned unit development review process" to the Aldasoro PUD. R., Ex. A at 55. Notably, no provision of the 1991 PUD Plan applies the "planned unit development process" to the Sheep Ranch or the Airport Park.

As Ms. Simonson points out in her Written Interpretation, the 1991 PUD Plan unequivocally defines the Sheep Ranch as "physically and logically separated from the P.U.D." R., Ex. A at 55. Ultimately, Albert Aldasoro, acting as President of Aldasoro Ltd., signed and notarized the 1991 PUD Plan thus demonstrating his intent to exclude the Sheep Ranch from a planned unit development. R., Ex. A at 61.

The terms of the 1991 PUD Plan are unambiguous and therefore not subject to consideration of extrinsic evidence. Nevertheless, Aldasoro's sketch plans and 1990 Development Plan provide further support for the County's decision. The sketch plans proposed to rezone 1550 acres (the same land referred to as the P.U.D. in the 1991 PUD Plan) to a planned unit development and expressly left the balance of Aldasoro's properties (the Sheep Ranch and Airport Park) unaltered. R., Ex. F at 363. The sketch plans refer to the 1550 acres as the "Aldasoro Ranch" throughout its terms. *Id*. at 363-68. Both the 1990 Development Plan and the 1991 PUD Plan refer to the "Aldasoro Ranch" in several different contexts, such as the Plan's title and Aldasoro PUD covenants. R., Ex. A at 26, 42-44; Ex. D at 236-239, 223. "Aldasoro

Ranch" describes the same land subject to the planned unit development consistently throughout the sketch plans, 1990 Development Plan, and the 1991 PUD Plan. Thus, consideration of the extrinsic evidence further supports the reasoning that the planned unit development created by the 1991 PUD Plan was to include only the 1550 acres of land was consistently intended to be the only land subject to the PUD Act.

A plain reading of the 1991 PUD Plan necessitates the conclusion that the Aldasoro PUD is the only planned unit development created by its terms. The Sheep Ranch, while subject to certain provisions of the 1991 PUD Plan, is explicitly excluded from the planned unit development. The record supports this determination, and the competent evidence overwhelmingly proves the County properly upheld the Planning Director's Written Interpretation.

ii. Analyzing whether the 1991 PUD Plan complies with the LUC and PUD Act further corroborates the parties' intent to exclude the Sheep Ranch from the planned unit development.

Plaintiffs' arguments, in part, examine state and local law to conclude the parties' intended to place the Sheep Ranch in the planned unit development pursuant to C.R.S. § 24-67-101 *et seq*. This method of interpretation is improper without challenging the legality of the parties' approval of the 1991 PUD Plan. Specifically, Plaintiffs assert the 1991 PUD Plan contemplates a unified plan under C.R.S. § 24-67-105 for the Sheep Ranch, Airport Park, and Aldasoro PUD. They further argue any conclusion to the contrary was prohibited by the LUC upon adoption of the 1991 PUD Plan.

Plaintiffs' reasoning ignores the plain language of the 1991 PUD Plan and presumes the parties were prohibited from negotiating terms to rezone property not otherwise part of the planned unit development. In other words, the 1991 PUD Plan serves two functions: (1) the development of the Aldasoro PUD as a planned unit development per C.R.S. § 24-67-101 *et seq.*; and (2) rezoning the Sheep Ranch and Airport Park pursuant to the LUC. Nonetheless, even when analyzing the 1991 PUD Plan in light of the LUC, the only reasonable interpretation is the parties' intended to create a planned unit development exclusively for the Aldasoro PUD and preclude application of the PUD Act for the Sheep Ranch.

For example, the 1991 PUD Plan exempts the Sheep Ranch from the LUC's planned unit development standards by rezoning it to Forestry/Ag and designating it for ranching operations until a certain amount of acreage is sold. Section 5-1402 of the LUC defines activities that are subject to optional, exempt, and mandatory application of the planned unit development standards. R., Ex. H at 775. Mandatory compliance with the PUD standards is only required when a "developer proposes to subdivide land at a density higher than allowed by right in a particular zone district." LUC § 5-1402 A. R., Ex. H at 775. Activities are exempt from complying with the PUD standards when "uses and densities are allowed by right or for uses allowed by administrative review in a particular zone district." LUC § 5-1402 B. *Id*.

For areas zoned Forestry/Ag, such as the Sheep Ranch, a use by right includes "normal and customary agricultural and ranching activities." LUC § 5-307 B. IV. R., Ex. H at 675. The 1991 PUD Plan confirms that at that time, Aldasoro intended to "maintain … the Sheep Ranch … as a bona fide ranching operation." R., Ex. A at 56. Because ranching operations are a use by right in Forestry/Ag zones, the Sheep Ranch was exempt from complying with the LUC's planned unit development standards under LUC § 5-1402 B. R., Ex. H at 675.

Additionally, Plaintiffs incorrectly conclude the 1991 PUD Plan limits the Sheep Ranch to a density of 35 acre lots in compliance with C.R.S. § 24-67-105(4). They assert the Plan effectuates the requirements of C.R.S. § 24-67-105(4) by virtue of the Sheep Ranch being rezoned to Forestry/Ag. Uses subject to administrative review in areas zoned Forestry/Ag. include authorizing a guest house on properties larger than 35 acres. LUC §5-307 C. R., Ex. H at 675. The 1991 PUD Plan itself is devoid of any express standard that governs density or intensity for the Sheep Ranch. Merely by placing the Sheep Ranch in a zone that authorizes a use for guest houses on properties larger than 35 acres does not, by itself, satisfy the statutory standard for a PUD under C.R.S. 24-67-105(4).

Only one clause in the 1991 PUD Plan comes close to addressing such an acreage limit. Section 4.1.3 of the 1991 PUD Plan states that "Aldasoro shall preserve a site for an intercept parking lot that is sufficient to meet demands that result *if Sheep Ranch was sold in parcels of 35 acres*." (emphasis added). R., Ex. A at 33. This language merely expresses a possible event and falls short of establishing standards governing the intensity or density of the land per C.R.S. § 24-67-105(4).

Contrary to Plaintiffs' assertion, the 1991 PUD Plan fails to impose density or minimum lot standards on the Sheep Ranch. Instead, its terms place conditions on the land such as the collection of RETA under certain circumstances, a prohibition on dogs, preservation of a site for intercept parking, and the future potential to dedicate a right of way. R., Ex. A at 33, 34, and 46. In contrast, the Aldasoro P.U.D., is subject to extensive use and density limitations that satisfy the LUC's standards for a planned unit development per LUC § 5-1402. In comparing the restrictions and requirements placed on the Aldasoro P.U.D. and the Sheep Ranch, the 1991 PUD Plan undeniably excludes the Sheep Ranch from a planned unit development.

Plaintiffs further allege the 1991 PUD Plan expressly places all of Aldasoro's properties in a unified plan pursuant to C.R.S. § 24-67-103. They argue that the Plan's terms comply with the minimum statutory standards for a PUD pursuant to C.R.S. § 24-67-105 and therefore all properties were intended to be governed by the PUD Act. The 1991 PUD Plan fails to set forth a minimum number of lots in the Sheep Ranch per C.R.S. § 24-67-105(2), for the reasons addressed above, and it does not establish standards governing the density or intensity of land use for any other property other than the Aldasoro PUD. The collection of RETA required for both the Sheep Ranch and Aldasoro PUD is to cover a county's maintenance costs for transportation. RETA collection does not qualify as a "standard governing the density or intensity of land use." C.R.S.§ 24-67-105(4). Instead, RETA is a tax assessment authorized pursuant to C.R.S. § 39-13-102(5)(a).

As a result of the foregoing, interpreting the parties' intent in the 1991 PUD Plan in light of the LUC and PUD Act establishes that the Aldasoro PUD was the only land subject to a planned unit development – not the Sheep Ranch.

iii. *The Planning Director correctly determined the Sheep Ranch was subject to collection of RETA pursuant to the terms of the 1991 PUD Plan.*

Paragraph 4.1.1 of the 1991 PUD Plan subjects the parcels located within the Sheep Ranch to collection of RETA "on all transfers of property in the Sheep Ranch that involve less than or equal to one hundred (100) acres." R., Ex. A at 33. The LUC mandates "specific requirements regarding transportation that must be met prior to final subdivision approval" for "developers of subdivisions in the Telluride Region." LUC § 5-2001. The LUC provides for those activities that *must* pay the "fair-share costs of development," but does not limit a landowner from electing to be subject land to the tax. *Id*.

The LUC does not prohibit collection of RETA upon conveyance of parcels within the Sheep Ranch, but instead, Aldasoro elected to impose the RETA requirement. In the absence of a prohibition to impose RETA, Aldasoro and the County were free to negotiate terms prescribing collection.

V. CONCLUSION

In performing its quasi-judicial functions, the County properly upheld the Planning Director's Written Interpretation. The plain language of the 1991 PUD Plan is competent evidence and supports the conclusion that its terms explicitly exclude the Sheep Ranch from the Aldasoro PUD. Therefore, the Sheep Ranch is not subject to the PUD Act nor the PUD requirements of the LUC. Additionally, the 1991 PUD Plan lawfully applies collection of RETA to both the Sheep Ranch and Aldasoro PUD. The LUC does not prohibit voluntary imposition of RETA and Aldasoro elected to subject the Sheep Ranch to collection of RETA as explicitly required in the terms of the 1991 PUD Plan.

As a result, the County requests this Court to deny Plaintiffs' requested relief and affirm the County's decision to uphold the Planning Director's Written Determination.

Respectfully submitted this 6th day of May, 2024.

THOMASSON LAW, LLC

By: *Lane P. Thomasson*
Lane P. Thomasson, #49094
Co-Counsel for Defendants San Miguel County BOCC & Michael Wyszynski, in his official capacity as San Miguel County Clerk

CERTIFICATE OF SERVICE

I hereby certify that on May 6th 2024, a true copy of this **ANSWER BRIEF IN RESPONSE TO PLAINTIFFS' CLAIM ARISING UNDER C.R.C.P. 106(a)(4)** was filed with the Court via Colorado Courts E-Filing and served to all parties of record by Colorado Courts E-Filing.

/*s/ Lane P. Thomasson*
Lane P. Thomasson, #49094